

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Purchased: _____

-----X
ALFREDO LAVAYEN, BRUCE ORTIZ, AND
ANGEL ROJAS,

Plaintiffs designate Bronx County
as the place of trial

Plaintiffs,

The basis of the venue is where the
tort arose and where Plaintiffs reside

-against-

SUMMONS

THE CITY OF NEW YORK, GABRIELLE
RODRIGUEZ P.O. OF THE 41 PCT., SHIELD #13688,
TAX ID #955396, AND OTHER NEW YORK CITY
POLICE OFFICERS ON ARREST NUMBERS
B17632872, B17632870 AND B17632868, WHOSE
NAMES ARE NOT KNOWN AT THIS TIME N/H/A
JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE
INCIDENT THAT AROSE ON JUNE 25, 2017 AND
NO OTHER,

Plaintiffs reside at

ALFREDO LAVAYEN,
1027 Freeman Street
Bronx, New York 10459

BRUCE ORTIZ
627 Manida Street
Bronx, New York 10474

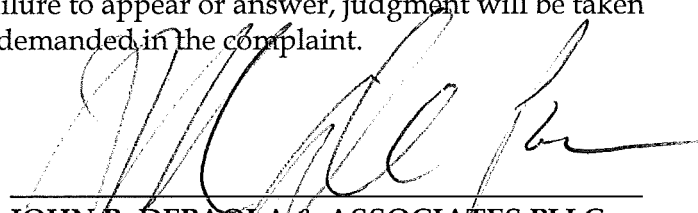
Defendants.

-----X
ANGEL ROJAS
2974 Valentine Avenue
Bronx, New York 10468

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this
action and to serve a copy of your answer, or if the complaint is not served with this
summons, to serve a notice of appearance, on the Plaintiffs' Attorney(s) within 20 days
after the service of this summons, exclusive of the day of service (or within 30 days after
the service is complete if this summons is not personally delivered to you within the State
of New York); and in case of your failure to appear or answer, judgment will be taken
against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
September 14, 2018



JOHN R. DEPAOLA & ASSOCIATES PLLC
Attorneys for Plaintiffs
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-0400 / (718) 281-4000

Defendants' Addresses:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**GABRIELLE RODRIGUEZ P.O. OF THE 41 PCT.
SHIELD #13688, TAX ID #955396**
1035 Longwood Avenue
Bronx, New York 10459

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased: _____

-----X
ALFREDO LAVAYEN, BRUCE ORTIZ, AND
ANGEL ROJAS,

Plaintiffs,

VERIFIED COMPLAINT**-against-**

THE CITY OF NEW YORK, GABRIELLE
RODRIGUEZ P.O. OF THE 41 PCT., SHIELD #13688,
TAX ID #955396, AND OTHER NEW YORK CITY
POLICE OFFICERS ON ARREST NUMBERS
B17632872, B17632870 AND B17632868, WHOSE
NAMES ARE NOT KNOWN AT THIS TIME N/H/A
JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE
INCIDENT THAT AROSE ON JUNE 25, 2017 AND
NO OTHER,

Defendants.

-----X

ALFREDO LAVAYEN, ANGEL ROJAS, AND BRUCE ORTIZ, by their attorneys,
JOHN R. DEPAOLA & ASSOCIATES PLLC, respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times mentioned, Plaintiff **ALFREDO LAVAYEN** was a resident of Bronx County, City and State of New York.
2. At all times mentioned, Defendant **CITY OF NEW YORK**, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. On or about the 19th day of September, 2017 and within ninety (90) days after some of the claims herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant **CITY OF NEW YORK**, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the

Defendant CITY OF NEW YORK, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.

4. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
5. The Plaintiff has complied with the request of the municipal Defendant's for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
6. Upon information and belief, at all times mentioned, Defendants **GABRIELLE RODRIGUEZ P.O. OF THE 41 PCT., SHIELD #13688, TAX ID #955396, AND OTHER NEW YORK CITY POLICE OFFICERS ON ARREST NUMBERS B17632872, B17632870 AND B17632868, WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV**, were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.
7. On or about June 25, 2017, at approximately 8:30 P.M. in the vicinity of the front of 620 Manida Street, which the police state occurred at approximately 10:15 P.M. in front of 626 Manida Street, County of Bronx, State of New York the Defendants jointly and severally in their capacity as police officers,

wrongfully touched, grabbed, handcuffed and seized the Plaintiff **ALFREDO LAVAYEN**, in an excessive manner about his person, causing him physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A SECOND CAUSE OF ACTION

8. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "7" with full force and effect as though set forth at length herein.
9. On or about June 25, 2017, at approximately 8:30 P.M. in the vicinity of the front of 620 Manida Street, which the police state occurred at approximately 10:15 P.M. in front of 626 Manida Street, County of Bronx, State of New York the Defendants, jointly and severally did place Plaintiff **ALFREDO LAVAYEN** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

10. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "9" with full force and effect as though set forth at length herein.
11. On or about June 25, 2017, at approximately 8:30 P.M. in the vicinity of the front of 620 Manida Street, which the police state occurred at approximately

10:15 P.M. in front of 626 Manida Street, County of Bronx, State of New York the Defendants, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty and then took him into custody to a police station in the County of Bronx and there charged him with the crimes on Docket No. 2017BX025918. The Plaintiff was thereafter held in custody over the course of approximately twelve (12) days until he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement. In this particular incident, Plaintiff was inside a deli purchasing something to drink and as Plaintiff was walking out of the store, approximately ten (10) police officers approached Plaintiff and immediately handcuffed him without offering any explanation. Plaintiff was taken to the 41 Precinct then to Central Booking where he was told he was being charged for possession of a gun and marijuana. Plaintiff was then sent to The Vernon C. Bain Center (VCBC), also known as the Vernon C. Bain Maritime Facility and under the nickname "The Boat". Plaintiff was subject to strip-searches with a cavity inspection on multiple times.

AS AND FOR A FOURTH CAUSE OF ACTION

12. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "11" with full force and effect as though set forth at length herein.

13. On or about June 25, 2017, at approximately 8:30 P.M. in the vicinity of the front of 620 Manida Street, which the police state occurred at approximately 10:15 P.M. in front of 626 Manida Street, County of Bronx, State of New York the Defendants, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully imprisoned the Plaintiff, restrained him and his liberty and then took him into custody and causing him to be incarcerated as a detainee in the City of New York's Correctional Facility. The Plaintiff was thereafter held in custody over the course of approximately twelve (12) days before he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement. In this particular incident, Plaintiff was inside a deli purchasing something to drink and as Plaintiff was walking out of the store, approximately ten (10) police officers approached Plaintiff and immediately handcuffed him without offering any explanation. Plaintiff was taken to the 41 Precinct then to Central Booking where he was told he was being charged for possession of a gun and marijuana. Plaintiff was then sent to The Vernon C. Bain Center (VCBC), also known as the Vernon C. Bain Maritime Facility and under the nickname "The Boat". Plaintiff was subject to strip-searches with a cavity inspection on multiple times.

AS AND FOR A FIFTH CAUSE OF ACTION

(This Cause of action only applies against the Individually named Police Officers not the City of New York or officers sued in their official capacity)

14. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "13" with full force and effect as though set forth at length herein.
15. Defendants **GABRIELLE RODRIGUEZ P.O. OF THE 41 PCT., SHIELD #13688, TAX ID #955396, AND OTHER NEW YORK CITY POLICE OFFICERS ON ARREST NUMBERS B17632872, B17632870 AND B17632868, WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV**, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.
16. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
17. Plaintiff **ALFREDO LAVAYEN** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
18. The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.
19. On or about June 25, 2017, the Defendants, armed police, while effectuating the seizure of the Plaintiff **ALFREDO LAVAYEN**, did search, seize, assault

and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned and maliciously prosecuted without the Defendants possessing probable cause to do so.

GABRIELLE RODRIGUEZ P.O. OF THE 41 PCT., SHIELD #13688, TAX ID #955396 is believed to be the arresting officer in this instant matter.

GABRIELLE RODRIGUEZ P.O. OF THE 41 PCT., SHIELD #13688, TAX ID #955396 along with **JOHN/JANE DOE I-IV** were involved in an investigation that wrongfully led to the arrest of the Plaintiff. The Plaintiff was unlawfully detained by said officers and unlawfully arrested even though Plaintiff had not committed any crime or violation of the law. Based on the false statements and/or observations of **GABRIELLE RODRIGUEZ P.O. OF THE 41 PCT., SHIELD #13688, TAX ID #955396** and **JOHN/JANE DOE I-IV** Plaintiff was falsely arrested, illegally searched and seized. In this particular incident, Plaintiff was inside a deli purchasing something to drink and as Plaintiff was walking out of the store, approximately ten (10) police officers approached Plaintiff and immediately handcuffed him without offering any explanation. Plaintiff was taken to the 41 Precinct where he was held for about a day then to Central Booking where he was told he was being charged for possession of a gun and marijuana. Plaintiff was then sent to The Vernon C. Bain Center (VCBC), also known as the Vernon C. Bain Maritime Facility and under the nickname "The Boat".

Plaintiff was subject to strip-searches with a cavity inspection on multiple times.

20. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:
 - a. Freedom from assault to his person;
 - b. Freedom from battery to his person;
 - c. Freedom from illegal search and seizure;
 - d. Freedom from false arrest;
 - e. Freedom from the use of excessive force during the arrest process;
 - f. Freedom from unlawful imprisonment;
 - g. Freedom from loss of his liberty.
 - h. Freedom from being illegally searched with a cavity inspection on multiple times.
 21. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.
 22. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.
- AS AND FOR A SIXTH CAUSE OF ACTION**
23. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "22" with full force and effect as though set forth at length herein.

24. Defendant **CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.
25. **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.
26. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested.
 2. Excessive force cannot be used against an individual who does not physically resist arrest.
 3. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.

27. The foregoing acts, omissions and systemic failures are customs and policies of the **CITY OF NEW YORK** which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search the Plaintiff commit an assault/battery to his person and denied him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR A SEVENTH CAUSE OF ACTION

28. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "27" as it set forth at length herein.
29. Defendant **CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the **CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

AS AND FOR AN EIGHTH CAUSE OF ACTION

30. At all times mentioned, Plaintiff **BRUCE ORTIZ** was a resident of Bronx County, City and State of New York.
31. At all times mentioned, Defendant **CITY OF NEW YORK**, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.

32. On or about the 19th day of September 2017 and within ninety (90) days after some of the claims herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant CITY OF NEW YORK, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY OF NEW YORK, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.
33. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
34. The Plaintiff has complied with the request of the municipal Defendant's for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
35. Upon information and belief, at all times mentioned, Defendants **GABRIELLE RODRIGUEZ P.O. OF THE 41 PCT., SHIELD #13688, TAX ID #955396, AND OTHER NEW YORK CITY POLICE OFFICERS ON ARREST NUMBERS B17632872, B17632870 AND B17632868, WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV,** were and are police officers of the Defendant City of New York, and at

all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.

36. On or about June 25, 2017, at approximately 8:30 P.M. in the vicinity of the front of 620 Manida Street, which the police state occurred at approximately 10:15 P.M. in front of 626 Manida Street, County of Bronx, State of New York the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **BRUCE ORTIZ**, in an excessive manner about his person, causing his physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR A NINTH CAUSE OF ACTION

37. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "36" with full force and effect as though set forth at length herein.
38. On or about June 25, 2017, at approximately 8:30 P.M. in the vicinity of the front of 620 Manida Street, which the police state occurred at approximately 10:15 P.M. in front of 626 Manida Street, County of Bronx, State of New York the Defendants, jointly and severally did place Plaintiff **BRUCE ORTIZ** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A TENTH CAUSE OF ACTION

39. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "38" with full force and effect as though set forth at length herein.
40. On or about June 25, 2017, at approximately 8:30 P.M. in the vicinity of the front of 620 Manida Street, which the police state occurred at approximately 10:15 P.M. in front of 626 Manida Street, County of Bronx, State of New York the Defendants, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty and then took him into custody to a police station in the County of Bronx and there charged him with the crimes on Docket No. 2017BX025916. The Plaintiff was thereafter held in custody over the course of approximately six (6) days until he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement. In this particular incident, Plaintiff was inside a deli purchasing something to eat and drink and as Plaintiff was walking out of the store, police officers approached Plaintiff and immediately handcuffed him without offering any explanation. Plaintiff was taken to the 41 Precinct then to Central Booking where he was told he was being charged for possession of a gun and marijuana. Plaintiff was then sent to The Vernon C. Bain Center (VCBC), also known as the Vernon C. Bain Maritime Facility and under the nickname "The Boat".

Plaintiff was subject to strip-searches with a cavity inspection on multiple times.

AS AND FOR A ELEVENTH CAUSE OF ACTION

41. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "40" with full force and effect as though set forth at length herein.
42. On or about June 25, 2017, at approximately 8:30 P.M. in the vicinity of the front of 620 Manida Street, which the police state occurred at approximately 10:15 P.M. in front of 626 Manida Street, County of Bronx, State of New York the Defendants, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully imprisoned the Plaintiff, restrained him and his liberty and then took him into custody and causing him to be incarcerated as a detainee in the City of New York's Correctional Facility. The Plaintiff was thereafter held in custody over the course of approximately six (6) days before he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement. In this particular incident, Plaintiff was inside a deli purchasing something to eat and drink and as Plaintiff was walking out of the store, police officers approached Plaintiff and immediately handcuffed him without offering any explanation. Plaintiff was taken to the 41 Precinct then to Central Booking where he was told he was being charged for possession of a gun and marijuana. Plaintiff was then sent to The Vernon C. Bain Center (VCBC), also known as the

Vernon C. Bain Maritime Facility and under the nickname "The Boat".

Plaintiff was subject to strip-searches with a cavity inspection on multiple times.

AS AND FOR A TWELFTH CAUSE OF ACTION

(This Cause of action only applies against the Individually named Police Officers not the City of New York or officers sued in their official capacity)

43. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "42" with full force and effect as though set forth at length herein.
44. Defendants **GABRIELLE RODRIGUEZ P.O. OF THE 41 PCT., SHIELD #13688, TAX ID #955396, AND OTHER NEW YORK CITY POLICE OFFICERS ON ARREST NUMBERS B17632872, B17632870 AND B17632868, WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV**, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.
45. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
46. Plaintiff **BRUCE ORTIZ** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

47. The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.
48. On or about June 25, 2017, the Defendants, armed police, while effectuating the seizure of the Plaintiff **BRUCE ORTIZ**, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned and maliciously prosecuted without the Defendants possessing probable cause to do so. **GABRIELLE RODRIGUEZ P.O. OF THE 41 PCT., SHIELD #13688, TAX ID #955396** is believed to be the arresting officer in this instant matter. **GABRIELLE RODRIGUEZ P.O. OF THE 41 PCT., SHIELD #13688, TAX ID #955396** along with **JOHN/JANE DOE I-IV** were involved in an investigation that wrongfully led to the arrest of the Plaintiff. The Plaintiff was unlawfully detained by said officers and unlawfully arrested even though Plaintiff had not committed any crime or violation of the law. Based on the false statements and/or observations of **GABRIELLE RODRIGUEZ P.O. OF THE 41 PCT., SHIELD #13688, TAX ID #955396** and **JOHN/JANE DOE I-IV** Plaintiff was falsely arrested, illegally searched and seized. In this particular incident, Plaintiff was inside a deli purchasing something to eat and drink and as Plaintiff was walking out of the store, police officers approached Plaintiff and immediately handcuffed him without offering any explanation. Plaintiff was taken to the 41 Precinct then to Central Booking where he was told he was being charged for possession of a gun and

marijuana. Plaintiff was then sent to The Vernon C. Bain Center (VCBC), also known as the Vernon C. Bain Maritime Facility and under the nickname "The Boat". Plaintiff was subject to strip-searches with a cavity inspection on multiple times.

49. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:
- a. Freedom from assault to his person;
 - b. Freedom from battery to his person;
 - c. Freedom from illegal search and seizure;
 - d. Freedom from false arrest;
 - e. Freedom from the use of excessive force during the arrest process;
 - f. Freedom from unlawful imprisonment;
 - g. Freedom from loss of his liberty.
 - h. Freedom from being illegally searched with a cavity inspection on multiple times.
50. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.
51. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A THIRTEENTH CAUSE OF ACTION

52. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "51" with full force and effect as though set forth at length herein.
53. Defendant **CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.
54. **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.
55. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested.

2. Excessive force cannot be used against an individual who does not physically resist arrest.
 3. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.
56. The foregoing acts, omissions and systemic failures are customs and policies of the **CITY OF NEW YORK** which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search the Plaintiff commit an assault/battery to his person and denied him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR A FOURTEENTH CAUSE OF ACTION

57. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "56" as it set forth at length herein.
58. Defendant **CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the **CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

AS AND FOR A FIFTEENTH CAUSE OF ACTION

59. At all times mentioned, Plaintiff **ANGEL ROJAS** was a resident of Bronx County, City and State of New York.
60. At all times mentioned, Defendant **CITY OF NEW YORK**, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
61. On or about the 19th day of September, 2017 and within ninety (90) days after some of the claims herein arose, the Plaintiff served a Notice of Claim in writing sworn to on their behalf upon the Defendant CITY OF NEW YORK, by delivering a copy thereof in duplicate to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY OF NEW YORK, of the nature, place, time and manner in which the claim arose, the items of damage and injuries sustained so far as was then determinable.
62. At least thirty (30) days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety (90) days after the happening of the event upon which the claims are based.
63. The Plaintiff has complied with the request of the municipal Defendant's for an oral examination pursuant to Section 50-H of the General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.

64. Upon information and belief, at all times mentioned, Defendants GABRIELLE RODRIGUEZ P.O. OF THE 41 PCT., SHIELD #13688, TAX ID #955396, AND OTHER NEW YORK CITY POLICE OFFICERS ON ARREST NUMBERS B17632872, B17632870 AND B17632868, WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV, were and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, THE CITY OF NEW YORK.
65. On or about June 25, 2017, at approximately 8:30 P.M. in the vicinity of the front of 620 Manida Street, which the police state occurred at approximately 10:15 P.M. in front of 626 Manida Street, County of Bronx, State of New York the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff ANGEL ROJAS, in an excessive manner about his person, causing his physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law.

AS AND FOR AN SIXTEENTH CAUSE OF ACTION

66. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "65" with full force and effect as though set forth at length herein.
67. On or about June 25, 2017, at approximately 8:30 P.M. in the vicinity of the front of 620 Manida Street, which the police state occurred at approximately 10:15 P.M. in front of 626 Manida Street, County of Bronx, State of New York

the Defendants, jointly and severally did place Plaintiff **ANGEL ROJAS** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact. At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A SEVENTEENTH CAUSE OF ACTION

68. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "67" with full force and effect as though set forth at length herein.
69. On or about June 25, 2017, at approximately 8:30 P.M. in the vicinity of the front of 620 Manida Street, which the police state occurred at approximately 10:15 P.M. in front of 626 Manida Street, County of Bronx, State of New York the Defendants, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained him and his liberty and then took him into custody to a police station in the County of Bronx and there charged him with the crimes on Docket No. 2017BX025912. The Plaintiff was thereafter held in custody over the course of approximately six (6) days until he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement. In this particular incident, Plaintiff was in front of deli/bodega when police officers approached Plaintiff and immediately handcuffed him without offering any

explanation. Plaintiff was taken to the 41 Precinct then to Central Booking where he was told he was being charged for possession of a gun and marijuana. Plaintiff was then sent to The Vernon C. Bain Center (VCBC), also known as the Vernon C. Bain Maritime Facility and under the nickname "The Boat". Plaintiff was subject to strip-searches with a cavity inspection on multiple times.

AS AND FOR A EIGHTEENTH CAUSE OF ACTION

70. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "69" with full force and effect as though set forth at length herein.
71. On or about June 25, 2017, at approximately 8:30 P.M. in the vicinity of the front of 620 Manida Street, which the police state occurred at approximately 10:15 P.M. in front of 626 Manida Street, County of Bronx, State of New York the Defendants, jointly and severally without any valid warrant, order or other legal process and without any legal right, wrongfully and unlawfully imprisoned the Plaintiff, restrained him and his liberty and then took him into custody and causing him to be incarcerated as a detainee in the City of New York's Correctional Facility and/or police jail. The Plaintiff was thereafter held in custody over the course of approximately six (6) days before he was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement. In this particular incident, Plaintiff was in front of deli/bodega when police officers approached Plaintiff and immediately handcuffed him without offering any

explanation. Plaintiff was taken to the 41 Precinct then to Central Booking where he was told he was being charged for possession of a gun and marijuana. Plaintiff was then sent to The Vernon C. Bain Center (VCBC), also known as the Vernon C. Bain Maritime Facility and under the nickname "The Boat". Plaintiff was subject to strip-searches with a cavity inspection on multiple times.

AS AND FOR A NINETEENTH CAUSE OF ACTION

72. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "71" with full force and effect as though set forth at length herein.
73. Upon information and belief, on or about June 25, 2017 and from that time until the dismissal of charges on or about July 13, 2017 which was a favorable termination for the accused, by the Honorable S. Hornstein presiding at Bronx County Criminal Court, Part FB, Defendants **THE CITY OF NEW YORK, GABRIELLE RODRIGUEZ P.O. OF THE 41 PCT., SHIELD #13688, TAX ID #955396, AND OTHER NEW YORK CITY POLICE OFFICERS ON ARREST NUMBERS B17632872, B17632870 AND B17632868, WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV**, deliberately and maliciously prosecuted Plaintiff **ANGEL ROJAS**, an innocent man without any probable cause whatsoever, by filing or causing a criminal court complaint to be filed in the Criminal Court of the City of New York, Bronx County, for the purpose of falsely accusing the plaintiff of violations of the criminal laws of the State of New York.

74. The Defendants, jointly and severally, their agents, servants or employees failed to take reasonable steps to stop the prosecution of the Plaintiff and instead maliciously and deliberately provided false and/or incomplete information to the District Attorney's office to induce prosecution of the Plaintiff and due to the absence of probable cause malice can be inferred.
75. The commencement of these criminal proceedings under Docket No. 2017BX025912 was malicious and began in malice and without probable cause, so that the proceedings could succeed by the Defendants. -
76. As a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution. The Plaintiff made multiple court appearances to defend his liberty against these unjust charges.

AS AND FOR A TWENTIETH CAUSE OF ACTION

(This Cause of action only applies against the Individually named Police Officers not the City of New York or officers sued in their official capacity)

77. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "76" with full force and effect as though set forth at length herein.
78. Defendants **GABRIELLE RODRIGUEZ P.O. OF THE 41 PCT., SHIELD #13688, TAX ID #955396, AND OTHER NEW YORK CITY POLICE OFFICERS ON ARREST NUMBERS B17632872, B17632870 AND B17632868, WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A**

JOHN/JANE DOE I-IV, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.

79. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
80. Plaintiff **ANGEL ROJAS** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
81. The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.
82. On or about June 25, 2017, the Defendants, armed police, while effectuating the seizure of the Plaintiff **ANGEL ROJAS**, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned and maliciously prosecuted without the Defendants possessing probable cause to do so.
- GABRIELLE RODRIGUEZ P.O. OF THE 41 PCT., SHIELD #13688, TAX ID #955396** is believed to be the arresting officer in this instant matter.
- GABRIELLE RODRIGUEZ P.O. OF THE 41 PCT., SHIELD #13688, TAX ID #955396** along with **JOHN/JANE DOE I-IV** were involved in an investigation that wrongfully led to the arrest of the Plaintiff. The Plaintiff was unlawfully detained by said officers and unlawfully arrested even

though Plaintiff had not committed any crime or violation of the law. Based on the false statements and/or observations of **GABRIELLE RODRIGUEZ P.O. OF THE 41 PCT., SHIELD #13688, TAX ID #955396** and **JOHN/JANE DOE I-IV** Plaintiff was falsely arrested, illegally searched and seized. In this particular incident, Plaintiff was in front of deli/bodega when police officers approached Plaintiff and immediately handcuffed him without offering any explanation. Plaintiff was taken to the 41 Precinct then to Central Booking where he was told he was being charged for possession of a gun and marijuana. Plaintiff was then sent to The Vernon C. Bain Center (VCBC), also known as the Vernon C. Bain Maritime Facility and under the nickname "The Boat". Plaintiff was subject to strip-searches with a cavity inspection on multiple times.

83. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:
- a. Freedom from assault to his person;
 - b. Freedom from battery to his person;
 - c. Freedom from illegal search and seizure;
 - d. Freedom from false arrest;
 - e. Freedom from malicious prosecution;
 - f. Freedom from the use of excessive force during the arrest process;
 - g. Freedom from unlawful imprisonment;
 - h. Freedom from loss of his liberty.
 - i. Freedom from being illegally searched with a cavity inspection on multiple times.

84. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.
85. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A TWENTY-FIRST CAUSE OF ACTION

86. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "85" with full force and effect as though set forth at length herein.
87. Defendant **CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.
88. **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be

reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.

89. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested.
 2. Excessive force cannot be used against an individual who does not physically resist arrest.
 3. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.
90. The foregoing acts, omissions and systemic failures are customs and policies of the **CITY OF NEW YORK** which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search the Plaintiff commit an assault/battery to his person and denied him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR A TWENTY-SECOND CAUSE OF ACTION

91. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in paragraphs "1" through "90" as it set forth at length herein.
92. Defendant **CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact

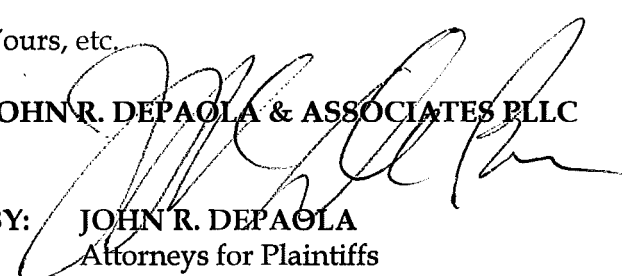
that these officers were not suitable to be hired and employed by the **CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court which otherwise would have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: Bayside, New York
September 14, 2018

Yours, etc.

JOHN R. DEPAOLA & ASSOCIATES PLLC


BY: JOHN R. DEPAOLA
Attorneys for Plaintiffs
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-0400 / (718) 281-4000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased: _____

-----X
ALFREDO LAVAYEN, BRUCE ORTIZ, AND
ANGEL ROJAS,

VERIFICATION

Plaintiffs,

-against-

THE CITY OF NEW YORK, GABRIELLE
RODRIGUEZ P.O. OF THE 41 PCT., SHIELD #13688,
TAX ID #955396, AND OTHER NEW YORK CITY
POLICE OFFICERS ON ARREST NUMBERS
B17632872, B17632870 AND B17632868, WHOSE
NAMES ARE NOT KNOWN AT THIS TIME N/H/A
JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE
INCIDENT THAT AROSE ON JUNE 25, 2017 AND
NO OTHER,

Defendants.

-----X

I, JOHN R. DEPAOLA, an attorney admitted to practice in the courts of New York State, state that I am a member of the firm of JOHN R. DEPAOLA & ASSOCIATES PLLC, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiffs is because Plaintiffs reside outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
September 14, 2018



JOHN R. DEPAOLA

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

ALFREDO LAVAYEN, BRUCE ORTIZ, AND ANGEL ROJAS,

Plaintiffs,

-against-

THE CITY OF NEW YORK, GABRIELLE RODRIGUEZ P.O. OF THE 41 PCT., SHIELD #13688,
TAXID #955396, AND OTHER NEW YORK CITY POLICE OFFICERS ON ARREST NUMBERS
B17632872, B17632870 AND B17632868, WHOSE NAMES ARE NOT KNOWN AT THIS TIME
N/H/A JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE INCIDENT THAT AROSE ON JUNE
25, 2017 AND NO OTHER,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

JOHN R. DEPAOLA & ASSOCIATES PLLC
BY: JOHN R. DEPAOLA
Attorney for Plaintiff(s)
42-40 Bell Boulevard
Bayside, NY 11361
Tel. (718) 281-4000

To: CORPORATION COUNSEL OF NEW YORK CITY

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.
Dated _____

Attorney(s) for